

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

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MICHAEL RAMIREZ

Plaintiff,

- against -

**THE CITY OF NEW YORK, HASAN JENKINS P.O. OF
THE 43rd PRECINCT, SHIELD NO #26995,
TAX NO #967125, LEWIS FREDERICK P.O. OF THE
43rd PRECINCT, TAX NO# 938852 OTHER CITY OF
NEW YORK POLICE OFFICERS INVOLVED IN
ARREST #B19632464 WHOSE NAMES ARE NOT KNOWN AT
THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO
THE INCIDENT THAT AROSE ON AUGUST 5, 2019**

Defendants.
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Index No.:
Purchased:

Plaintiff designates
BRONX County as the place of trial

The basis of the venue is where the
tort arose and where Plaintiff resides.

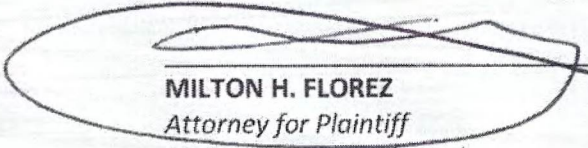
SUMMONS

Plaintiff resides at
MICHAEL RAMIREZ
1251 Rev James Polite Avenue
Bronx, NY 10459

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of the New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
JUNE 10, 2020


MILTON H. FLOREZ
Attorney for Plaintiff
40-50 Junction Boulevard
First Floor
Corona, NY 11368

Defendants' Addresses:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

CITY OF NEW YORK POLICE DEPARTMENT

One Police Plaza
New York, NY

NEW YORK CITY POLICE DEPARTMENT

HASAN JENKINS P.O. OF THE 43rd PRECINCT, SHIELD NO #26995, TAX NO #967125,

LEWIS FREDERICK P.O. OF THE 43rd PRECINCT, TAX NO# 938852

43rd Precinct
900 Fteley Avenue
Bronx, NY 10473

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.: _____

-----X
MICHAEL RAMIREZ

Plaintiff,

VERIFIED COMPLAINT

Against

THE CITY OF NEW YORK, HASAN JENKINS P.O. OF
THE 43rd PRECINCT, SHIELD NO #26995,
TAX NO #967125, LEWIS FREDERICK P.O. OF THE
43rd PRECINCT, TAX NO# 938852 OTHER CITY OF
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Defendants.
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MICHAEL RAMIREZ, by his attorney, MILTON H. FLOREZ, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff **MICHAEL RAMIREZ** was a resident of Bronx County, City and State of New York.
2. At all times mentioned, Defendant, **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 23rd day of October, 2019 and within ninety (90) days after the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant, **CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant, **CITY OF NEW YORK**, of the nature, place time and manner in which the claim rose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.

5. The Plaintiff has complied with the request of municipal Defendant's for an oral examination pursuant to Section 50-H of the General Municipal law and/or the Public Authorities Law and/or no such request was made within the applicable period.

6. Upon information and belief, at all times mentioned, Defendants, **THE CITY OF NEW YORK, HASAN JENKINS P.O. OF THE 43rd PRECINCT, SHIELD NO #26995, TAX NO #967125, LEWIS FREDERICK P.O. OF THE 43rd PRECINCT, TAX NO# 938852 AND OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B19632464 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON AUGUST 5, 2019**, were and are Officers and/or employees of the defendant, **CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT**, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT**.

7. On or about August 5, 2019, at approximately 9:00 pm, in front of 836 Olmstead Avenue, Bronx County and State of New York the Defendants, **THE CITY OF NEW YORK, HASAN JENKINS P.O. OF THE 43rd PRECINCT, SHIELD NO #26995, TAX NO #967125, LEWIS FREDERICK P.O. OF THE 43rd PRECINCT, TAX NO# 938852 AND OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B19632464 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON AUGUST 5, 2019**, jointly and severally in their capacity as Officers, falsely imprisoned, illegally searched in violation of his Constitutional civil right to be free from illegal search by officers, wrongfully touched, punched about the face and body, choked, grabbed, handcuffed and seized the Plaintiff, **MICHAEL RAMIREZ**, in an excessive manner about his person, causing him physical pain

and mental suffering. At no time did the Defendants have legal cause to arrest, search, seize, grab, handcuff, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effects as though set forth at length herein.

9. On or about August 5, 2019, at approximately 9:00 pm, in front of 836 Olmstead Avenue, Bronx County and State of New York the Defendants, **THE CITY OF NEW YORK, HASAN JENKINS P.O. OF THE 43rd PRECINCT, SHIELD NO #26995, TAX NO #967125, LEWIS FREDERICK P.O. OF THE 43rd PRECINCT, TAX NO# 938852 AND OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B19632464 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON AUGUST 5, 2019**, jointly and severally did place Plaintiff, **MICHAEL RAMIREZ**, in imminent fear of physical contact by approaching the Plaintiff and restraining the Plaintiff. They further unlawfully detained the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.

11. On or about August 5, 2019, at approximately 9:00 pm, in front of 836 Olmstead Avenue, Bronx County and State of New York the Defendants, **THE CITY OF NEW YORK, HASAN JENKINS P.O. OF THE 43rd PRECINCT, SHIELD NO #26995, TAX NO #967125, LEWIS FREDERICK P.O. OF THE 43rd PRECINCT, TAX NO# 938852 AND OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B19632464 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON AUGUST 5, 2019**, jointly and severally without any warrant, order or other

legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a local precinct in the Bronx County. There charged him with the crimes on Arrest No.: #B19632464. The Plaintiff was thereafter held in custody over the course of approximately 30 hours in the custody of the New York City Police Department until he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effects as though set forth at length herein.

13. On or about August 5, 2019, at approximately 9:00 pm, in front of 836 Olmstead Avenue, Bronx County and State of New York the Defendants, **THE CITY OF NEW YORK, HASAN JENKINS P.O. OF THE 43rd PRECINCT, SHIELD NO #26995, TAX NO #967125, LEWIS FREDERICK P.O. OF THE 43rd PRECINCT, TAX NO# 938852 AND OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B19632464 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON AUGUST 5, 2019**, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in the City of New York's jail facilities, to wit a local police precinct holding cell, and/or to Central Booking. The Plaintiff was thereafter held in custody over the course of approximately 30 hours before he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR THE FIFTH CAUSE OF ACTION

14. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.

15. Defendants, **HASAN JENKINS P.O. OF THE 43rd PRECINCT, SHIELD NO #26995, TAX NO #967125, LEWIS FREDERICK P.O. OF THE 43rd PRECINCT, TAX NO# 938852 AND OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B19632464 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON AUGUST 5, 2019,** were at all times relevant, duly appointed and acting officers of the NEW YORK CITY POLICE DEPARTMENT.

16. At all times mentioned herein, said officers were acting under color of law, to wit; the statutes, ordinances, regulations, policies and customs and usage of the State of New York and City of New York.

17. Plaintiff, **MICHAEL RAMIREZ**, is and at all times relevant herein, a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

18. The Defendant, **HASAN JENKINS P.O. OF THE 43rd PRECINCT, SHIELD NO #26995, TAX NO #967125, LEWIS FREDERICK P.O. OF THE 43rd PRECINCT, TAX NO# 938852 AND OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B19632464 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON AUGUST 5, 2019,** is a municipality duly incorporated under the laws of the State of New York.

19. On or about August 5, 2019, the Defendants, while effectuating the arrest of the Plaintiff, **MICHAEL RAMIREZ**, did grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was unlawfully imprisoned, assaulted, and had multiple batteries committed against him, without the Defendants possessing probable cause to do so. In the instant case, Plaintiff was arrested for Disorderly Conduct. Petitioner was held in police custody for approximately thirty (30) hours and released by the police without being charged by the Bronx District Attorney or arraigned on charges in Criminal Court.

20. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:

- a. Freedom from assault to his person.
- b. Freedom from battery to his person.
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from the use of excessive force during the arrest process;
- f. Freedom from unlawful imprisonment;
- g. Freedom from loss of his liberty.
- h. Freedom from being illegally searched.

21. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.

22. The direct and proximate result of the Defendant's acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A SIXTH CAUSE OF ACTION

23. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "22" with full force and effect as though set forth at length herein.

24. Defendants, **THE CITY OF NEW YORK, HASAN JENKINS P.O. OF THE 43rd PRECINCT, SHIELD NO #26995, TAX NO #967125, LEWIS FREDERICK P.O. OF THE 43rd PRECINCT, TAX NO# 938852 AND OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B19632464 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON AUGUST 5, 2019**, have grossly failed to train and adequately supervise its Officers in the

fundamental law of arrest, search and seizure especially when its officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not omitted a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate and arrest and the arrest should be based on probable cause.

25. **THE CITY OF NEW YORK**, was negligent by failing to implement a policy with its Department and instruct Officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest, a search warrant, said Officers of the City of New York and the Police Department are not to arrest or unlawfully detain individuals such as the Plaintiff here were probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

26. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Department or actively enforce the law, if any of the following are lacking:

1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
2. Excessive force cannot be used against an individual who does not physically resist arrest.
3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.

27. The foregoing acts, omissions and systemic failures are customs and policies of **THE CITY OF NEW YORK** which caused the police officers to falsely arrest, illegally detain in custody, unlawfully detain in custody, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to his person and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR A SEVENTH CAUSE OF ACTION

28. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "27" as it set forth at length herein.

29. Defendant, **THE CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, **THE CITY OF NEW YORK, HASAN JENKINS P.O. OF THE 43rd PRECINCT, SHIELD NO #26995, TAX NO #967125, LEWIS FREDERICK P.O. OF THE 43rd PRECINCT, TAX NO# 938852 AND OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B19632464 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON AUGUST 5, 2019**, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the **CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals, illegally keep in custody, unlawfully keep in custody nor use excessive force during the process.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction in the amount of one million dollars (\$1,000,000.00), together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: CORONA, New York
June 10, 2020

Yours, etc.
LAW OFFICE OF MILTON H. FLOREZ
BY: MILTON H. FLOREZ
Attorney for Plaintiff
40-50 Junction Boulevard
First Floor
Corona, NY 11368
(631) 861-5094

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
MICHAEL RAMIREZ

Plaintiff,

VERIFICATION

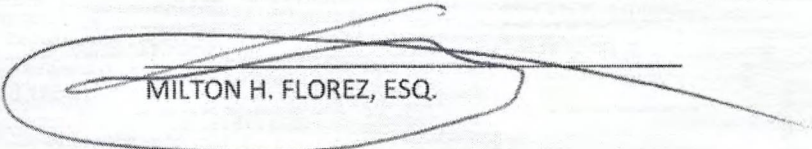
Against

THE CITY OF NEW YORK, HASAN JENKINS P.O. OF
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TAX NO #967125, LEWIS FREDERICK P.O. OF THE
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Defendants.
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I, MILTON H. FLOREZ, an attorney admitted to practice in the courts of New York State, state
that I am a member of the firm of the Law Office of Vivian R. Cedeno, the attorney of record for Plaintiff
in the within action; I have read the foregoing and know the contents thereof; the same is true to my
own knowledge, except as to the matters therein stated to be alleged on information and belief, and as
to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is
because Plaintiff resides outside of the county where the deponent maintains his office. I affirm that the
foregoing statements are true, under penalties of perjury.

Dated: Bayside, New York
JUNE 10, 2020


MILTON H. FLOREZ, ESQ.

Index No.: _____

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MICHAEL RAMIREZ,

Plaintiff,

Against

THE CITY OF NEW YORK, HASAN JENKINS P.O. OF THE 43rd PRECINCT, SHIELD NO #26995, TAX NO #967125, LEWIS FREDERICK P.O. OF THE 43rd PRECINCT, TAX NO# 938852 AND OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B19632464 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I – V AS IT PERTAINS TO THE INCIDENT THAT AROSE ON AUGUST 5, 2019
Defendants.

SUMMONS AND VERIFIED COMPLAINT

Law Office of Milton H. Florez
BY: MILTON H. FLOREZ
Attorney for Plaintiff
40-50 Junction Boulevard
First Floor
Corona, NY 11368
• Tel. (631) 861-5094

To: CORPORATION COUNSEL OF NEW YORK CITY

NEW YORK CITY POLICE DEPARTMENT

HASAN JENKINS P.O. OF THE 43rd PRECINCT, SHIELD NO #26995, TAX NO #967125,
LEWIS FREDERICK P.O. OF THE 43rd PRECINCT, TAX NO# 938852
43rd Precinct
900 Fteley Avenue
Bronx, NY 10473

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated: June 10, 2020